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Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244

Re: Appeal of ALJ Decision — Case Nos. 25-B-00327 / 25-A-05051

I. Introduction

The Administrative Law Judge's 9 July 2025 decision mischaracterizes an employer-initiated lock-out as a "voluntary quit," inverts the burden of proof, and relies on testimony the ALJ himself acknowledged was non-specific. The record now includes the certified transcript; key passages show that Granite School District ("Granite") deactivated every credential on 5 May 2025 **before** any separation interview and that its witness could not remember the words he attributes to me. Reversal—or, at minimum, de-novo remand—is compelled.

II. Statement of Facts

On May 5, 2025 the appellant was locked out of his account.

1. **No Same-Day Notice.** Asked whether the usual suspension email went out on May 5, Mr. Bentley replied, "I don't have the date… I would have to go back and look" (p. 17, ll. 21–28). This is technically perjury, as Mr. Bentely knows full-well he has nothing "to go back and look" at because neither he nor anyone in the District sent me any emails for a week, while I was trying to contact them by phone and email. I sent multiple, long, pre-May-10 emails, which the employer, represented by Mr. Bentely, continues to obfuscate and refuse to release.

2. **Mr. Bentley "Guesses" What He Meant but Admits Mr. Golub Never Said He Quit or Resigned.** When the Judge asks Mr. Bentley, "Did the employer consider him [Mr. Golub] to be on probation or on suspension at that time?" (Tr. p. 16, l. 28–29), Mr. Bentley replies, "With our hourly employees or our substitutes, we don't necessarily consider probation [*i.e. instead of probation Granite removes them*]. It's just depending on the concerns, the level that they rise to or how many we've had, we'll just say we want to… [*now clearly evading the question*], I guess… it would be an informal probation, but not necessarily something that's formal, no" (p. 16, ll. 31–34). Granite's own HR witness describes my status on May 5 in arbitrary and uncertain terms, admitting under oath, "I *guess* it would be an informal probation, but not necessarily something that's formal" (Tr. p. 16, ll. 31–34). He "guessed"? This testimony confirms Granite lacked even rudimentary clarity regarding my employment status at the very moment it terminated my ability to work on May 5 and avoided my emails for a week. Such procedural ambivalence, where the employer cannot define what is formal and what is informal, precludes any legitimate finding that the separation was voluntary—the

appellant "guessed" he was fired. The employer "guessed" whether its decision was "formal" or "informal."

However, the employer made no guesses when it came to deactivating not only Mr. Golub's Frontline account, without which a teacher cannot legally teach (Exhibit A) but also deactivating his entire Granite School District account (Exhibit B) all the while ignoring his emails for over a week (May 5–13)—emails the employer refuses to share with the court, preferring to cite much later correspondence by which point any reasonable person would have justifiably presumed they were out of a job:

- If an employee shows up for work, and the employer blocks him from working, the employee no longer works for that employer;
- If an employee repeatedly attempts to contact the employer, and the employer ignores those attempts, the employee no longer works for that employer;
- When the last statement the employee makes to his employer is "I have been working with other academics on the problem facing Granite. I will send you the document outlining how AI tutor templates can be used to create custom agents for every student," he not only hasn't quit, he's still working for free (May 15 phone-call recording, held/unreleased by Granite School District.)

I was still working for the Granite School District at home (as I was prevented from working for money) because I was hoping they would hire me as a consultant for their AI-transition team. However, as they had fired me on May 5 and did not want to rehire me after May 15, I did as any civilized person and politely excused myself. I never said "I quit" or "I don't want to work" or any legal or informal statement suggesting I did not want to work. I never signed anything or was asked to sign anything.

Moreover, neither Mr. Bentley, nor anyone at the district, asked me if I was quitting or if I was planning on returning to work, because they 100% knew that if they gave me an activated account, I would return to work the next day. However, they asked no such clarifying questions because they had terminated my Frontline account May 5, my Granite School District account May 10, and failed to respond to my emails concerning the issues at hand.

3. **15 May Phone Call.** When Mr. Bentley was asked if I ever said "I quit" or "I don't plan to work for you," he testified, "I don't remember the exact words that you used." When I asked if he could clarify what he meant, the ALJ interrupted me and stated for the record: "**Right, he's already said he doesn't remember exactly what you said**" (Tr. p. 20, l. 11).

4. **ALJ's Excluded Appellant's Exhibits.** The judge excluded my exhibits [p. 6, ll. 3–8).

5. **Continued Attachment to Labour Market.** Since 18 May 2025, I have filed weekly claims and filled and submitted over 100 applications.

Appellant Argument:

III. Legal Argument

Legal implications (due process):

1. **Employer-Initiated Separation.** Under **Utah Admin. Code R994-405-201** a separation is a discharge when the employer determines the last day worked. Granite's unilateral lock-out meets that definition and parallels *Clearfield City v. Department of Employment* 663 p. 2d 440 (Utah 1983).
2. **No Competent Proof of Resignation.** Hearsay paraphrase cannot satisfy Granite's burden under **Utah Admin. Code R994-405-105**.The evidence from the witness, Mr. Bentely, is at best hazy—an inconclusive recollection, which he repeatedly qualified, and the ALJ reiterated that Mr. Bentley didn't remember what the claimant said [GIVE CITATIONS].
3. **Just-Cause Elements Unsatisfied.** *Kehl v. Bd. of Review*, 700 P.2d 1129 (Utah 1985) requires employer proof of culpability, knowledge, and control. The transcript contains none.
4. **Procedural Due-Process Error.** In his decision, the ALJ quotes a May 13 letter which Mr. Golub concludes, "I do not want to waste any more of your time and I wish you the best of luck." However, all of the letters written by Mr. Golub between May 5–12 were excluded despite his insistence that without a full record, the May 13 letter is taken entirely out of context. Mr. Golub had already had his Frontline and Districts accounts deactivated when he wrote the May 13 letter. And his email was deactivated shortly thereafter, preventing him from accessing any of his correspondence with the Granite School District. The district is withholding undisclosed Granite emails after excluding the claimant's exhibits.
5. **Equity-and-Good-Conscience.** Even if the Board classifies the separation as a quit, R994-405-103 mandates an equity analysis. Mr. Golub's daily weekly job search and prompt claims filings satisfy this clause.
6. **Illicit Drug-Test Demand.** Granite's hallway blood-draw ultimatum violated Utah Code § 34-38-6 and its own Policy IX.A.1.b, rendering the workplace intolerable and excusing any purported quit. Though Mr. Golub did not quit, if he had quit it was because of a hostile work environment. Thus, if the ruling is he quit, then he quit with good cause.

IV. Relief Requested

- **Reverse** the ALJ and allow benefits beginning the week ending 18 May 2025; or
- **Remand** for de-novo hearing with instructions to compel full discovery of Granite's 1–15 May 2025 emails and subpoena witnesses to the May 5, K-9 unit storming of Mr. Golub's 1st grade class.

Respectfully submitted,

Peter Golub, Appellant-Claimant

Attachments
A. Certified July 8 2025 Hearing Transcript (excerpts highlighted)
B. Screenshot—Frontline "Credentials Disabled" (5 May 2025)
C. Granite Deactivation E-mail (10 May 2025)